

CONTRACT: Cloud Services Agreement - AWS

Contract Details

Contract ID	C-005
Vendor	Amazon Web Services
Expiry Date	2025-05-28
Version	v1.0
Status	Active
Risk Level	High
Created By	Anjali Rao
Uploaded Date	2024-04-18

Contract Content

CLOUD SERVICES AGREEMENT - AWS

Contract ID: C-005

This Cloud Services Agreement ("Agreement") is entered into as of the Effective Date specified below by and between Amazon Web Services, Inc., a Delaware corporation with its principal place of business at 410 Terry Avenue North, Seattle, WA 98109 ("AWS" or "Vendor"), and the undersigned enterprise customer ("Customer"). AWS and Customer may be referred to individually as a "Party" and collectively as the "Parties."

1. PARTIES

This Agreement is made between AWS and Customer for the provision of cloud computing services, as further described herein. Customer represents and warrants that it has the authority to enter into this Agreement and perform its obligations hereunder.

2. DEFINITIONS

For purposes of this Agreement, the following terms shall have the meanings set forth below:

- (a) "Services" means the cloud computing services provided by AWS, including but not limited to computing, storage, database, analytics, machine learning, and other related services as described in the applicable service documentation.
- (b) "Confidential Information" means any non-public information disclosed by one Party to the other Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.
- (c) "Effective Date" means the date on which this Agreement is executed by both Parties.

3. SCOPE OF SERVICES

AWS agrees to provide the Services to Customer in accordance with the terms of this Agreement and any applicable service documentation or order forms. Customer shall use the Services solely for its internal business purposes and in compliance with all applicable laws and regulations.

4. TERM AND TERMINATION

(a) Term: This Agreement shall commence on the Effective Date and continue for an initial term of one (1) year, unless terminated earlier in accordance with this Section. The Agreement shall automatically renew for successive one-year terms unless either Party provides written notice of non-renewal at least thirty (30) days prior to the expiration of the then-current term.

(b) Termination for Cause: Either Party may terminate this Agreement immediately upon written notice if the other Party materially breaches any provision of this Agreement and fails to cure such breach within thirty (30) days of receiving written notice of the breach.

(c) Termination for Convenience: Customer may terminate this Agreement for convenience upon thirty (30) days' written notice to AWS.

(d) Effect of Termination: Upon termination of this Agreement, Customer shall cease all use of the Services, and AWS shall cease providing the Services. Any accrued fees or charges owed by Customer shall remain payable.

5. FEES AND PAYMENT

(a) Fees: Customer shall pay AWS the fees for the Services as set forth in the applicable order forms or service documentation.

(b) Payment Terms: All fees are due and payable within thirty (30) days of the invoice date. Late payments may incur interest at the rate of one and one-half percent (1.5%) per month or the maximum rate permitted by law, whichever is lower.

(c) Taxes: Customer shall be responsible for all applicable taxes, duties, and other governmental charges arising from the use of the Services, excluding taxes based on AWS's net income.

6. CONFIDENTIALITY

Each Party agrees to protect the other Party's Confidential Information using the same degree of care that it uses to protect its own confidential information, but in no event less than reasonable care. Confidential Information shall not be disclosed to any third party without the prior written consent of the disclosing Party, except as required by law or as necessary to perform obligations under this Agreement.

7. DATA PROTECTION

AWS shall implement and maintain appropriate technical and organizational measures to protect Customer data against unauthorized access, disclosure, or loss. Customer acknowledges that it is responsible for ensuring compliance with applicable data protection laws and regulations in relation to its use of the Services.

8. INTELLECTUAL PROPERTY

(a) Ownership: AWS retains all rights, title, and interest in and to the Services, including all related intellectual property rights. Customer retains all rights, title, and interest in and to its data.

(b) License: AWS grants Customer a limited, non-exclusive, non-transferable license to use the Services during the term of this Agreement solely for Customer's internal business purposes.

9. WARRANTIES

(a) AWS warrants that the Services will be provided in a professional and workmanlike manner consistent with industry standards.

(b) Disclaimer: Except as expressly provided in this Agreement, AWS disclaims all other warranties, express or implied, including but not limited to warranties of merchantability, fitness for a particular purpose, and non-infringement.

10. LIABILITY LIMITATION

To the maximum extent permitted by law, AWS's total liability under this Agreement shall not exceed the amount of fees paid by Customer to AWS during the twelve (12) months preceding the event giving rise to the claim. In no event shall AWS be liable for any indirect, incidental, consequential, or punitive damages, including loss of profits or revenue, even if advised of the possibility of such damages.

11. INDEMNITY

(a) AWS Indemnity: AWS shall indemnify, defend, and hold harmless Customer from and against any third-party claims alleging that the Services infringe upon any intellectual property rights, provided that Customer promptly notifies AWS of the claim and allows AWS to control the defense and settlement of the claim.

(b) Customer Indemnity: Customer shall indemnify, defend, and hold harmless AWS from and against any third-party claims arising from Customer's use of the Services in violation of this Agreement or applicable law.

12. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of Washington, without regard to its conflict of laws principles.

13. DISPUTE RESOLUTION

Any disputes arising under this Agreement shall first be resolved through good faith negotiations between the Parties. If the dispute cannot be resolved within thirty (30) days, the Parties agree to submit the dispute to binding arbitration in Seattle, Washington, in accordance with the rules of the American Arbitration Association.

14. MISCELLANEOUS

(a) Entire Agreement: This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior agreements, understandings, or representations.

(b) Amendments: This Agreement may only be amended by a written agreement signed by both Parties.

(c) Assignment: Customer may not assign or transfer this Agreement without the prior written consent of AWS.

(d) Notices: All notices under this Agreement shall be in writing and delivered to the addresses specified by the Parties.

(e) Severability: If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

Amazon Web Services, Inc.

By: _____

Name: _____

Title: _____

Date: _____

Customer

By: _____

Name: _____

Title: _____

Date: _____